

DEPARTMENT OF VETERANS AFFAIRS

**FAR 8 – Justification for Limiting Sources (LSJ)
For
Limiting Sources (<SAT)**

Acquisition Plan Action ID:36C242-25-AP-2440

- 1. Contracting Activity:** Department of Veterans Affairs, Network/Program Contracting Office 02, located at 113 Holland Avenue, Albany NY 12208, in support of VISN 02 VA Health Care System
- 2. Description of Action:** The contract effort goals are to purchase Pentax Endoscopy Equipment and accessories on contract 36C24222F0215. Objectives to meet this need is to purchase the Pentax Endoscopy Equipment and accessories being used in the GI Department at the VA New Jersey Healthcare System.

Order against: ☒ FS 36F79721D0031
Name of Contractor Pentax
Street Address: 3 Paragon Drive
City, State, Zip: Montvale, NJ 07645
Phone:

3. Description of Supplies or Services:

The estimated value of the proposed action is \$ 248,000.00

Pentax Endoscopy equipment

EE #	Manufacturer	Equipment Name	Model	Serial	Category
125802	PENTAX CORP	LINEAR ULTRASOUND VIDEO	EG38-J10UT	Q110158	ENDOSCOPES: GI: UPPER TRACT: VIDEO/ULTRASOUND
125803	PENTAX CORP	LINEAR ULTRASOUND VIDEO	EG38-J10UT	Q110157	ENDOSCOPES: GI: UPPER TRACT: VIDEO/ULTRASOUND
125804	PENTAX CORP	VIDEO GASTROSCOPE- i10 SLIM	EG27-i10	B111588	ENDOSCOPES: GI: UPPER TRACT
125805	PENTAX CORP	VIDEO GASTROSCOPE- i10 SLIM	EG27-i10	B111589	ENDOSCOPES: GI: UPPER TRACT

Attachment 1: Justification for Limiting Sources for Micro-Purchase Threshold up to the SAT

125806	PENTAX CORP	VIDEO GASTROSCOPE- 110 STANDARD	EG29-I10	Q002YZ2541	ENDOSCOPES: GI: UPPER TRACT
125807	PENTAX CORP	VIDEO GASTROSCOPE- 110 STANDARD	EG29-I10	Q002YZ2535	ENDOSCOPES: GI: UPPER TRACT
125808	PENTAX CORP	VIDEO GASTROSCOPE- 110 STANDARD	EG29-I10	Q002YZ2568	ENDOSCOPES: GI: UPPER TRACT
125809	PENTAX CORP	VIDEO COLONOSCOPE- 110 STANDARD	EC38-I10L	B007JZ0160	ENDOSCOPES: GI: LOWER TRACT
125810	PENTAX CORP	VIDEO COLONOSCOPE- 110 STANDARD	EC38-I10L	B007JZ0164	ENDOSCOPES: GI: LOWER TRACT
125811	PENTAX CORP	VIDEO COLONOSCOPE- 110 STANDARD	EC38-I10L	B007JZ0163	ENDOSCOPES: GI: LOWER TRACT
125812	PENTAX CORP	VIDEO COLONOSCOPE- 110 STANDARD	EC38-I10L	B007JZ0165	ENDOSCOPES: GI: LOWER TRACT
125813	PENTAX CORP	VIDEO COLONOSCOPE- 110 STANDARD	EC38-I10L	B007JZ0162	ENDOSCOPES: GI: LOWER TRACT
125814	PENTAX CORP	DIGITAL RADIAL ULTRASOUND SCOPE	EG36-J10UR	N110072	ENDOSCOPES: GI: UPPER TRACT: VIDEO/ULTRASOUND
125815	PENTAX CORP	DIGITAL SLIM LINEAR ULTRASOUND SCOPE	EG34-J10U	N110051	ENDOSCOPES: GI: UPPER TRACT: VIDEO/ULTRASOUND
125817	PENTAX CORP	RETROVIEW 110 COLONOSCOPE	EB19-J10	A110095	ENDOSCOPES: RESPIRATORY TRACT
125818	PENTAX CORP	RADIANCE MONITOR	NDS90R0107	21-373367	MONITORS: VIDEO: MEDICAL
125819	PENTAX CORP	RADIANCE MONITOR	NDS90R0107	21-373340	MONITORS: VIDEO: MEDICAL
125820	PENTAX CORP	RADIANCE MONITOR	NDS90R0107	21-373337	MONITORS: VIDEO: MEDICAL

4. Authority:

Order Against FSS: Authority of the Multiple Award Schedule Program, Title III of the Federal Property and Administrative Services Act of 1949 (41 USC 251, et seq.); Title 40 USC 501, Services for Executive Agencies; and Section 803 of the National Defense Authorization Act of 2002 (PL 107-107) and implemented by [FAR 8.405-6](#). Mark the applicable exception:

☐ **An urgent and compelling need exists**, and following the procedures would result in unacceptable delays([FAR 8.405-6\(a\)\(1\)\(i\)\(A\)](#));

☐ **Only one source** is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized; ([FAR 8.405-6\(a\)\(1\)\(i\)\(B\)](#));

☐ In the interest of economy and efficiency, the new work is **a logical follow-on** to an original Federal Supply Schedule order and the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. **The original order was not previously issued under sole-source or limited-sources procedures** ([FAR 8.405-6\(a\)\(1\)\(i\)\(C\)](#)); or

☒ **Items peculiar to one manufacturer.** An item peculiar to one manufacturer can be a particular brand name, product, or a feature of a product, peculiar to one manufacturer). A brand name item, whether available on one or more schedule contracts, is an item peculiar to one manufacturer ([FAR 8.405-6\(b\)](#)).

5. **Rationale/explanation to support cited authority:** The only source that can provide the leased equipment currently being used under contract 36F79721D0031 36C24222F0215 is Pentax of America, the contractor of the contract. As the specific equipment being used is from Pentax and under this contract, any other vendor would cause a delay and disruption of services to Veterans.
6. BRAND NAME ONLY This buy is estimated to exceed \$25,000 and this documentation will be posted along with the RFQ on e-Buy, as required by FAR 8.405-1(e).
7. Note that this determination satisfies the requirements of [FAR 8.405-6](#). The requirement to prepare a written justification [IAW FAR 6.303](#) does not apply to Federal Supply Schedules.

Corey Swinton
Contracting Officer
FACILITY/NCO 02/Albany
Date: _____